

Into the Words: Using Statutory Text to Explore the Impact of Federal Courts on State Policy Diffusion

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I examine the impact federal appellate courts have on state policy diffusion through the use of computational text analysis. Using a dyadic framework, I model the impact courts have on the decision to adopt a policy and, if adopted, how much text to borrow directly from another state's preexisting law. A court decision ruling a statute unconstitutional can generate up to a 28% relative reduction in the probability of adoption, and a ruling of constitutionality can both increase the probability of adoption by a similar amount and more than double the amount of borrowed text. These findings shed light on how states learn from one another.

Beginning with the seminal study conducted by Walker in 1969, many scholars have marshaled evidence that a process of diffusion is at work in state policy innovation (Allen, Pettus, and Haider-Markel 2004; Berry and Berry 1990; Gray 1973; Mooney and Lee 1995). I contribute to this line of research by examining the impact the U.S. Supreme Court and the U.S. Courts of Appeals (a.k.a. circuit courts) have on the formation and diffusion of state policies. The U.S. Constitution restricts the policies states are permitted to implement by setting minimum requirements for protections all state governments must provide (Welch and Thompson 1980, 717). Federal courts are the ultimate arbiters of which policies meet these requirements. Their rulings on existing laws provide important information to other states. If the process of diffusion occurs through states evaluating the experience and success of preexisting policies, state legislators should be less likely to adopt the types of policies that have been struck down as unconstitutional and more likely to adopt those the courts have explicitly upheld.

This evaluation of federal courts' impact on state policy diffusion goes beyond the simple fact of which policies are adopted and extends to consider statutory

text. In 2006, Volden pioneered the use of dyadic analysis in diffusion research, which enables scholars to investigate characteristics of the relationship between two states. I utilize this analytical framework and develop a new measure of policy similarity—the amount of text one law borrows from another. Since this measure quantifies the relationship between policies of two states, a dyadic model is the natural vehicle for analysis. This approach also makes it possible to model features specific to each preexisting policy, including whether federal courts have ruled on its constitutionality. The incorporation of computational text analysis into the field of diffusion research produces a new approach for gaining more nuanced traction on how and why federal courts influence policy diffusion.

The unit of analysis is a dyad of states in each year, with the dyad composed of a potential adopter, $State_i$, and a previous adopter, $State_j$. First, I examine a potential adopter's decision regarding whether to adopt a policy previously adopted by $State_j$ in a given year, t . Second, if $State_i$ does legislate in year t , I use plagiarism software to calculate what percentage of the new law is borrowed from the text of $State_j$'s previously adopted policy. A particularly efficient way for states to utilize the information

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in court rulings is to directly incorporate statutory language the courts have approved and avoid using language from a law that has been declared unconstitutional. There is evidence that federal litigation significantly influences both the adoption and content of policies. For example, Supreme Court rulings of unconstitutionality generate a reduction of 28% in the predicted adoption rate compared to when there are no relevant court rulings. Court rulings of constitutionality consistently influence the extent of borrowed text, leading to a relative increase of at least 179%.

This study builds on recent policy diffusion work examining the mechanisms behind diffusion by evaluating the impact of preexisting policies conditional on their success in federal courts. While measuring the success of public policies is often a very difficult task, how well a policy fares in terms of federal constitutional challenges lends itself to empirical examination. Exploring the link between this type of policy success and borrowing text provides information about not only the fact, but also the source, of influence and can point to which previous adopters wield the most influence. I investigate this key theoretical extension by utilizing a computational text analysis tool with potentially broad application to the study of policy diffusion. Examining both the adoption and formation of policies conditional on how federal courts have treated similar policies sheds important light on the role these courts play in how and why state policies diffuse.

Diffusion, Learning, and Federal Courts

The states have long been described as laboratories of democracy where innovative public policies can be developed. For decades, scholars have worked toward developing a better understanding of the forces that shape this process. In 1969, Walker posited that states have an important influence on each other in the process of policy innovation, resulting in a pattern of proliferation of policies across states. Since then, many scholars have presented evidence that diffusion plays a role in state policy innovation (Berry and Berry 1990; Bouché and Volden 2011; Gray 1973; Mooney and Lee 1995). Recent scholarly work has increasingly investigated the underlying mechanisms that drive observed patterns of policy diffusion, including learning, competition, socialization, and coercion (Karch 2007b; Pacheco 2012; Shipan and Volden 2008).

The idea that political subdivisions within a federal system of government act as policy laboratories suggests that the effects of implementing different kinds of policies provide valuable information for future policy decisions in other jurisdictions (Karch 2007a; Volden 2006). While scholars have frequently opined that states learn from each other's experiences, only a handful of recent studies factor policy success or failure into empirical analysis (Gilardi and Füglistner 2008; Gilardi, Füglistner, and Luyet 2009; Neumayer and Plümper 2012; Volden 2006). This element is key to distinguishing between simple imitation of a policy and actual learning about which policies are successful. The mere adoption of a policy in one state may be enough to generate imitation by other states. But if states are learning from one another's experience, the influence a policy has on subsequent adoptions will depend on the extent of its success. The federal government can play a role in such a learning process by providing important signals about a particular type of policy success.

Various branches of the federal government can exert influence over state policymaking (Berry and Berry 1990; Karch 2007b; Roh and Haider-Markel 2003). The primary source of this influence is the Supremacy Clause of the U.S. Constitution. No state has the power to pass laws that contravene either the federal constitution or federal statutes or treaties. Both the power and scope of the federal government have expanded over the course of the nation's history, with the result that today states face considerable federal restrictions on the policies they are permitted to implement (Welch and Thompson 1980, 717). Federal courts are frequently the mechanism through which the supremacy of federal law is established.

Courts' influence is not limited to the direct impact of a court decision after a policy has been enacted, challenged, and litigated (Langer and Brace 2005, 317). There is evidence that courts play a role at the stage of policy consideration and adoption; state policy makers take into account the possibility that a policy might be struck down. Patton (2007) found evidence that policies the U.S. Supreme Court had indicated were on shaky constitutional ground were less likely to be adopted than policies the Court had not addressed at all or had ruled constitutional. Another study found evidence that state policy makers rely on knowledge about the ideological makeup of their state supreme court and the likelihood a statute will be challenged in that forum to inform their decision about whether or not to adopt a particular policy (Langer and Brace 2005, 318). I build on these studies by looking beyond courts of last resort and the binary adoption decision.

There are good reasons why state policy makers pay attention to court rulings before enacting new laws. Judicial opinions provide important information. This is especially true in the case of federal appellate courts because each has binding authority over multiple states. Such multijurisdictional actors have the ability to provide information precisely because they include multiple jurisdictions, so a ruling in one jurisdiction is applicable in other jurisdictions as well (Karch 2012; Strebel 2011; Welch and Thompson 1980). Rulings of the U.S. Supreme Court are applicable in all states, and published opinions issued by circuit courts are binding for all future cases in that circuit (Klein 2002; Lee 2003; Lindquist and Cross 2005). After a policy has been adopted by another state in the same circuit, resulting litigation will substantially reduce the uncertainty for subsequent adopters. Moreover, published opinions from a different circuit, while not legally binding, do constitute persuasive legal authorities. As a result, litigation regarding a policy in a state from a different circuit provides some information as well.

The information federal court rulings provide about the success (or failure) of preexisting state policies is likely to influence not only other states' decisions about whether to adopt a policy, but also how laws are drafted. I expand on previous work by analyzing the courts' impact on both of these facets of the policymaking process. Several scholars have discussed the importance of looking beyond the binary decision to adopt a policy and incorporating an evaluation of its content as well (Boehmke 2009a; Karch 2007b; Shipan and Volden 2012). Simply adopting the same kind of policy enacted in another state does not guarantee that the policy is exactly the same (Karch 2007b). Nor does it necessarily indicate that the previous adopter, *State_j*, was the source of the idea or information behind the current adopter's, *State_i*'s, decision (Volden, Ting, and Carpenter 2008).

The extent to which a new law's precise phrasing overlaps with the text of an existing law provides important insight. An idea can be expressed in a nearly infinite number of ways. The appearance of the same phrases in two policies is not likely to happen coincidentally. Therefore, I use the term *borrowing* to refer to such overlap in the text of two statutes. Measuring the borrowed language in a new policy helps trace the flow of ideas across different jurisdictions. This mapping is not necessarily direct. For example, when the same phrasing is present in two or more preexisting statutes, a new law using that language may have been directly influenced by a subset of those policies. Although borrowed text (like most measures) does not perfectly capture the underlying concept, studying the extent of borrowed text provides a substantial improvement over simply observing the fact of policy

adoption. When a state adopts a new policy currently in place in other states, we can learn quite a bit by observing how much of the text is borrowed from each preexisting law.

Theory of Federal Court Effects

Federal courts act as gatekeepers for the many state policies that have federal constitutional implications. Whether state legislators' motivations for enacting a policy are substantive (i.e., they truly believe the policy is what is best for the state) or political (i.e., they believe supporting the policy will help get them reelected), neither goal is served very effectively if the policy is struck down by the courts. Enacting policies takes considerable expenditure of limited political resources (Boushey 2010). Therefore, legislators have an incentive to avoid adopting policies that are at a high risk of being struck down.¹ In order to husband scarce resources, state policy makers are motivated to anticipate how the courts might treat a potential policy (Langer and Brace 2005, 319).

When considering whether to invest political capital in a particular policy area, legislators call on a wide variety of information to evaluate the benefits and costs involved. Rulings handed down by federal courts on similar laws from other states provide key information about the level of risk that a policy will be declared unconstitutional. Holding all else equal, as this risk factor increases, the utility of adopting² a policy will decrease. Even if the court strikes down only a part or particular application of a law, that is a concrete indication that policy makers' intentions and efforts were thwarted. Conversely, when a federal court upholds a statute as constitutional, the risk factor associated with adopting that type of law is considerably lower, which means adopting the policy would provide greater utility. Although constitutionality does not guarantee ultimate policy success, it does reflect a necessary precursor of such success. Put differently, constitutionality is a necessary, but not sufficient, condition for policy success. As a result, I expect court rulings regarding an existing *Policy_j* to influence the probability

¹ This is not to say that there are never incentives that would militate in favor of adopting policies in spite of a high risk of being struck down.

² I use the term *adopt* to denote both initial adoptions and subsequent amendments. While most of the data involve initial adoptions, the theory applies equally to amendments. Federal litigation in other states can influence a state's decision to modify the text of its existing laws as more information becomes available about what is constitutionally permissible.

that $State_i$ will adopt the same type of policy in a given year t .³

Adoption Hypothesis: $State_i$ will be more (less) likely to adopt a policy previously adopted by $State_j$ when that policy has been declared constitutional (unconstitutional) by a federal appellate court.

Once $State_i$ decides to adopt a type of policy currently in place in $State_j$, federal court treatments are likely to influence the text of that law as well. After deciding to adopt a policy, legislators can influence the policy's risk factor by the way they draft the language. Utilizing specific phrasing from policies upheld by federal courts or deliberately avoiding text that has been declared unconstitutional can decrease the risk that the new policy will be struck down. Since decreasing this risk factor increases policy makers' utility, I expect policy language to reflect such choices.

Borrowing Hypothesis: When $State_i$ adopts a new law already in place in $State_j$, $State_i$ will borrow a larger (smaller) percentage of the text of $Policy_j$ when that policy has been declared constitutional (unconstitutional) by a federal appellate court.

The precedential value of information provided by court rulings varies depending on the identity of the federal court issuing the ruling. The doctrine of stare decisis differentiates between court rulings that are binding as a matter of law and those that are simply persuasive (Aldisert 1989; Schauer 2008). Judges are obligated to follow the former, but they have discretion to disregard the latter (Aldisert 1989). Court opinions that constitute binding precedent in $State_i$'s jurisdiction carry greater weight because they provide higher-quality information about the risk a future policy would be struck down. Supreme Court rulings are most informative since they are binding and supreme authority in all 50 states. If $State_i$ and $State_j$ are both in the same federal circuit, circuit court rulings are quite informative because they are binding (Cross 2003; Klein 2002).⁴ However, a ruling on a policy from a state in a different circuit would not be

³While the hypothesized effects may be dampened to the extent that potential adopters have no interest in passing a policy, the anticipated patterns should emerge in the aggregate.

⁴Only published opinions are binding under the doctrine of stare decisis (Klein 2002). However, as a practical matter, when a circuit court rules on the constitutionality of a state law, the opinion is virtually always deemed important enough to warrant publication.

TABLE 1 Breakdown of Abortion Policies by Subtopic, 1973–2010

Subtopic	Number of Laws
Parental Consent	36
Partial Birth	35
Parental Notice	31
Waiting Period	29
Public Funding	27
Postviability	20

binding in $Circuit_i$ if $State_i$ chose to adopt such a policy. Circuit court opinions carry only persuasive authority in their sister circuits (Cross 2003; Klein 2002). Consequently, such rulings are less informative than those from within the same circuit because they have less precedential value. Court rulings that provide the most information should have the greatest impact on both adoption and formation of policy.

Precedential Value Hypothesis: The size of the hypothesized effects set forth in the Adoption Hypothesis and Borrowing Hypothesis will be largest for Supreme Court rulings, smaller for circuit rulings from the same circuit, and smallest for circuit rulings from a different circuit.

Data and Research Design

Testing the foregoing hypotheses requires an issue that generates substantial litigation at both the circuit and Supreme Court level. Furthermore, measuring borrowed text dictates the use of individual subtopics with text that is discrete and readily identifiable (preferably composing a single statutory section or subsection). Abortion regulation meets both requirements particularly well.⁵ Since *Roe v. Wade* was decided in 1973, abortion regulations are clearly restricted by constitutional law. A variety of legal issues related to state abortion policies are decided by federal circuit courts and either never make it to the Supreme Court or take some time getting there. The result is sufficient variability in the data to test my hypotheses.⁶ I use data from the following six types of legislation:

⁵Other issue areas that might prove fruitful for expanding this line of research include obscenity laws, gun control laws, or issue areas that have generated dormant commerce clause litigation.

⁶While the high salience of this issue may limit the generalizability of this study somewhat, the advantages discussed above outweigh this consideration.

(1) requirement of parental consent for a minor's abortion, (2) requirement of parental notice for a minor's abortion, (3) imposition of a waiting period between informed consent and an abortion procedure, (4) restrictions on postviability abortions, (5) ban of partial-birth abortions, and (6) restrictions on the use of public funding for abortions. For each subtopic, I collected every applicable statute in all 50 states from 1973 to 2010. Table 1 provides the number of each type of policy enacted during the relevant time frame.

I use a dyadic approach to examine two aspects of the policy process. The first step is looking at what drives the binary policy adoption decision. Modeling the decision of a state regarding whether to adopt a policy in a given year has been the standard approach to policy diffusion studies since Berry and Berry's watershed 1990 article analyzing the diffusion of state lotteries (Graham, Shipan, and Volden 2013; Jones and Branton 2005; Karch 2007b). In 2006, Volden expanded this approach by incorporating a dyadic method used in the study of international relations to look at pairs of states rather than just the decision of a single state. This groundbreaking approach paved the way to study policy convergence between two states while accounting for features of both states individually and their relationship (see, e.g., Boehmke 2009b; Gilardi 2010; Shipan and Volden 2010; Volden 2006). While I use a different measure of policy convergence, this dyadic framework is fundamental to my research design. My primary theoretical focus is how the success (or failure) of existing policies influences the adoption decision. Consequently, I examine adoption in terms of whether a state chooses to adopt a particular preexisting policy. Structuring the unit of analysis in these dyadic terms allows direct comparison of the decision to adopt a specific policy the courts have declared constitutional (or unconstitutional) with the decision to adopt a policy the courts have not addressed.

Specifically, the first stage of the analysis is conducted using a pooled conditional dyadic event history model (Boehmke 2009b; Shipan and Volden 2010). The unit of analysis is the $State_i$ - $State_j$ dyad in year t for subtopic s . There is an observation for every $State_i$ in year t paired with every $State_j$ that had a policy from subtopic s in place in year $t - 1$. Such dyads are included for each of the policy subtopics. I use these conditional directed⁷ dyads because the subject of investigation is how the success of previous legislation influences subsequent policy decisions. Including dyads in which $State_j$ has not adopted

a particular type of policy would speak to the impact of a state's legislative inaction, which is not the focus of this study.⁸ I pool data across subtopics because the data are too sparse to evaluate each separately. Iteratively excluding each subtopic from the analysis produces similar overall patterns, indicating that no one subtopic is disproportionately driving the results.⁹ The model also includes fixed effects for the different policy subtopics to address heterogeneity across the somewhat different types of legislation.

The second stage of analysis examines how the content of a new policy is influenced by the success of preexisting laws. One of the key limits of diffusion studies to date has been the lack of attention to the content of legislation (Brinks and Coppedge 2006). Scholars have increasingly worked toward finding ways to incorporate more information about the nature of policies into quantitative models. Advances in computational text analysis offer the opportunity for further progress in this vein. WCopyfind is plagiarism software that quantifies the overlap in two documents (Corley 2008; Corley, Collins, and Calvin 2011). I utilize this tool to generate an outcome variable new to diffusion research, the percentage of text in a law adopted by $State_i$ that is borrowed from a statute previously enacted by $State_j$. The WCopyfind software provides a free, simple, and user-friendly way to calculate the percentage of text in one document that is borrowed from another document.¹⁰ The researcher can control the precise way borrowing is calculated by changing a few parameters. These include how long a phrase has to be in order to be counted as a match, how many imperfections may be tolerated, and whether to disregard certain features of the text, such as case, numbers, and punctuation.

My approach is to use the same parameter choices employed by previous political science research (Corley 2008; Corley, Collins, and Calvin 2011) and check alternative specifications to verify the software settings are not driving the empirical findings. First, I set the software to count all matching phrases at least six words long. Second, I allow up to two imperfections within a section of overlapping text. This allows the software to ignore minor variations due to line breaks or typographical errors.

⁸Moreover, Boehmke (2009b) warns that including all dyad-year combinations may bias the results.

⁹This check also allays concerns about including parental consent and parental notice laws as separate subtopics in spite of their close relationship.

¹⁰See <http://plagiarism.bloomfieldmedia.com/z-wordpress/software/wcopyfind/>. The WCopyfind 4.4.1 software also provides a side-by-side visual comparison of two documents with the overlapping text highlighted. An example is provided in Figure A1 in the appendix.

⁷Unlike mutually participatory actions (e.g., two countries going to war), learning from the prior experience of another state requires using directed dyads because the role of the potentially adopting state is distinct from the role of a previous adopter.

TABLE 2 Summary Statistics: Breakdown of Each of the Outcome and Court Treatment Variables

Outcome Variables			
	0	1	
Policy Adopted	115,637	1,906	
	Mean	Std. Dev.	Median
Percentage Borrowed	5.82	10.24	2
Treatment Variables			
	Unconstitutional	None	Constitutional
Supreme Court	2,009	110,152	5,390
Same Circuit	643	116,309	599
Different Circuit	6,756	103,897	6,898

Third, I set the software to ignore case, numbers, and outer punctuation. Consequently, variations in formatting or section numbers in two different laws will not obscure the use of the same textual provisions. In order to check the first parameter choice, I also calculate borrowed text using phrases at least 10 words long and at least 4 words long. For the second choice, I use an alternative specification allowing no imperfections, and finally, I calculate borrowed text without ignoring case, numbers, and outer punctuation. The primary specification of borrowed text and all four alternative specifications generate similar empirical results.

In this data set, the average amount of a newly adopted policy, $Policy_i$, that is borrowed from $Policy_j$ is 5.8%. This quantity ranges as high as 94% and is in double digits for nearly 20% of the data. To provide some context, I also compared the text of the two most common types of abortion policies across subtopic. When partial-birth abortion policies are compared to parental consent statutes (instead of other partial-birth laws), the average amount of borrowed text is a mere 0.49%. This indicates that the general incidence of overlapping text in two documents is very low even when the documents are both legislative in nature and even when they both address the same broad issue area.

As in the first step of my analysis, I analyze the extent of borrowed text using a pooled dyadic model with subtopic fixed effects. The second stage of analysis includes all dyad-year observations in which $State_i$ adopted a policy in year t . Since the outcome variable in the first stage is the binary determination of whether $State_i$ has taken legislative action on a policy previously adopted by $State_j$, I use a probit model.¹¹ The outcome in the second stage is the percentage of text in $State_i$'s new legislation

that is borrowed from the text in $State_j$'s policy, so I use a linear model.¹² The structure of these data raises concerns about two types of correlation in the errors that may potentially lead to deflated standard errors.

First, a two-stage decision-making process sometimes raises the problem of correlated residuals between the two stages biasing the estimates at the second stage (Heckman 1979). This can occur when the analysis at the second stage is conditional upon the value of the outcome variable in the first stage. Such is the case here. The second step of analyzing borrowed text can only take place when $State_i$ has chosen to adopt a new law. Estimation of the two stages in a Heckman selection model reveals a statistically significant ρ , but the correlation in the errors between the two stages of the model creates only a minuscule amount of bias. The results are virtually indistinguishable from those produced by separate probit and linear regression models. In light of this similarity, I choose to discuss the simpler models. The results of the Heckman model are available in Table A3 in the appendix.

A second potential source of correlated errors is the dyadic structure of the data, which introduces complex interdependencies. For example, rather than $State_i$'s decision to adopt a given policy in a given year appearing in the data only once (as it would in a monadic analysis), it appears each time it is paired with an existing statute.¹³ This repetition generates correlation in the residuals, which, if left unattended, would likely lead to deflated standard errors. In order to address this concern, I follow the example of other scholars and estimate robust standard errors clustered on $State_i$ and year t (Bouché and Volden 2011;

¹¹ Alternative functional forms, including logit, complementary log-log, and rare events logit, all lead to very similar substantive conclusions.

¹² The substantive conclusions are robust to alternative specifications.

¹³ In these data, the result is an average of about 16 pairings with a previous adopter.

Makse and Volden 2011).¹⁴ This technique relaxes the assumption of independence for a state legislature's decisions both within and across each policy subtopic in a given year.

While the dyadic approach contains potential pitfalls for the unwary analyst, once these concerns are addressed, the advantages are considerable. For the second stage of analysis, the dyadic approach is necessary because the outcome variable is intrinsically dyadic—the percentage of *Policy_i* that is borrowed from *Policy_j*. Investigating how *Policy_j*'s success impacts the extent of such borrowing requires using the dyad as the unit of analysis. Additionally, this modeling approach facilitates controlling for important characteristics of both *State_i* and *State_j* as well as their relationship. For example, since federal circuits are organized into groups of contiguous states, evaluating the differing impact of same circuit and different circuit rulings would be suspect without controlling for whether the two states in the dyad are neighbors. This advantage of a dyadic model also applies to the adoption analysis. While adoption can be modeled in monadic terms, doing so eliminates meaningful variation in the data. Using *State_i*-year as the unit of analysis requires grouping all court treatments for a policy type together and takes away the ability to control for nuances of individual policies. Finally, focusing on the same (dyadic) unit of analysis for both adoption and borrowing contributes to theoretical consistency and clarity. For the sake of comparison, Table A4 in the appendix contains the results of an analogous monadic adoption model.¹⁵

The key explanatory variables are the same for both the adoption and borrowed text models. I develop a factor variable for the treatment of *Policy_j* by each type of court—the Supreme Court, the same circuit as *State_i*, and a different circuit from *State_i*. The baseline value for each court treatment variable is that the court has not ruled on the constitutionality of *Policy_j*. The other possible values for each type of court are “Unconstitutional” and “Constitutional,” reflecting the rulings of the relevant court within the relevant time frame.¹⁶ The treatment of *Policy_j* in year *t* is classified based on court rulings

between the year *State_j* adopted the law and year *t* – 1.¹⁷ The value of these court treatment variables will vary for each existing *Policy_j* over time. When a policy is litigated, there is a period of time between its enactment and any appellate court rulings. During those years, all the court treatment variables will take on the baseline value of no treatment. The court treatment variables shed light on how a change in *Policy_j*'s level of success (as evidenced by a court ruling on its constitutionality) influences the adoption and formation of policies in other states.

In addition to testing the effect of federal court treatments, I control for a variety of other factors. The dyadic structure of the data makes it important to control for the number of previously adopted statutes that *State_i* has available to consider. Since I model both the initial adoption of policies and subsequent amendments, I include a control for whether *State_i* had a particular type of policy in existence in year *t* – 1. When *Existing Statute_{i(t-1)}* equals 1, any legislation adopted by *State_i* in year *t* amends or replaces another policy. The role of direct democracy may also play a role (Boehmke 2005). Consequently, in the adoption model, I control for whether the initiative process is available in *State_i*, and in the borrowed text model, I control for whether *Policy_i* was, in fact, adopted by means of an initiative.¹⁸

There is extensive literature addressing the impact of the internal characteristics of a state on its policy innovation. Consequently, I include controls for a number of characteristics of *State_i* (in year *t*), including legislative professionalism (Squire 2007), whether the state government is under Republican control,¹⁹ whether it is an election year, the state population (in millions), and its per capita income (in tens of thousands).²⁰ In addition to these variables, I also include analogous controls for *State_j*, with the exception of the election year variable. The dyadic nature of the models makes it possible to also

¹⁴Another possible approach is estimating a generalized estimating equation model with an exchangeable error structure grouped by *State_i*, year, and subtopic. This alternative produces substantially similar results for both the adoption and borrowed text models.

¹⁵Those results illustrate that collapsing the data to the state-year level disguises the effect federal court rulings have on the decision to adopt.

¹⁶These data are obtained from *Shepard's Citations*, a legal citation index, and all relevant circuit court rulings are published.

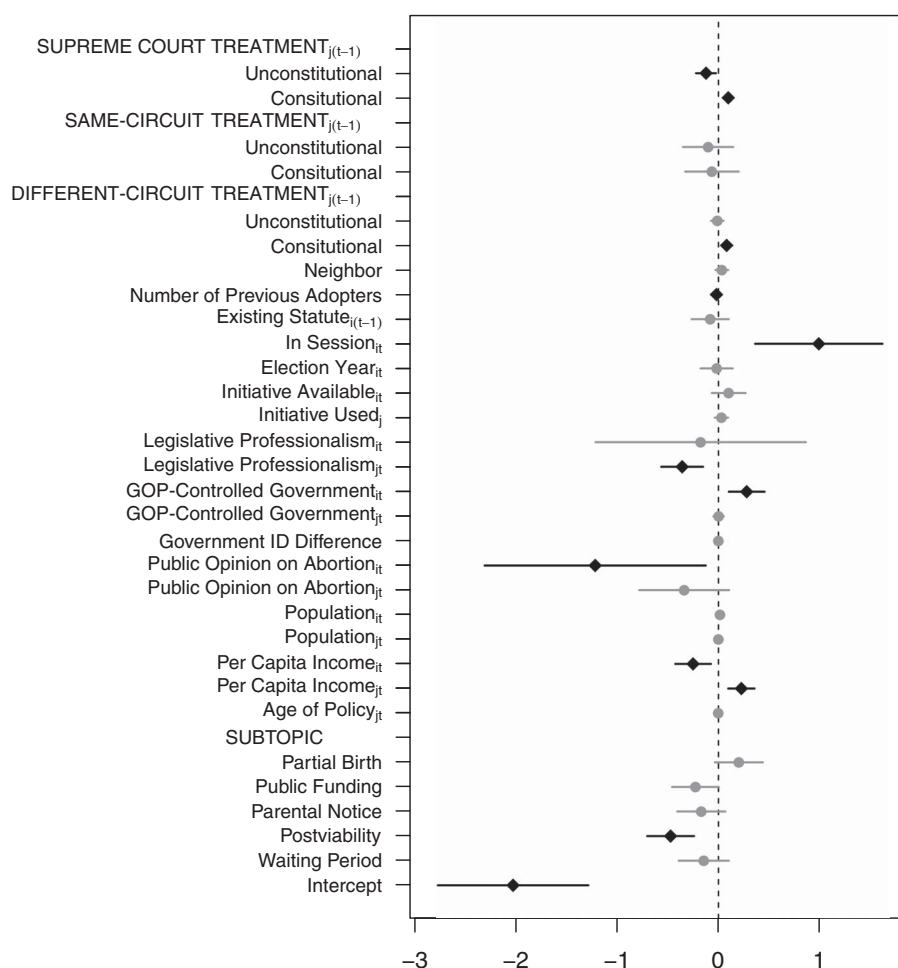
¹⁷Circuit court rulings that are subsequently reviewed by the Supreme Court are dropped from consideration upon such review because the Supreme Court ruling supersedes the circuit court opinion.

¹⁸These variables are coded using data made available by the Initiative & Referendum Institute at the University of Southern California. See <http://www.iandrinstitute.org/> (accessed May 18, 2014).

¹⁹A state is coded as under Republican control when the governor and majorities of both legislative chambers are Republican or where both chambers have a veto-proof Republican majority. This variable is designed to account for the fact that laws regulating abortion are more likely to be passed in states where members of the Republican Party have the ability to enact laws without the cooperation of their Democratic colleagues.

²⁰These were obtained from data sets made available by Carl Klarner at <http://www.indstate.edu/polisci/klarnerpolitics.htm> (accessed March 10, 2013).

FIGURE 1 Adoption Model



Note: This figure displays probit regression estimates of the effect of various types of federal court treatment and a range of control variables on $State_i$'s decision of whether to adopt a policy similar to $State_j$. The baseline subtopic is *Parental Consent*. Dots and diamonds indicate point estimates. Bars indicate 95% confidence intervals. Diamonds (instead of dots) and bars in black (instead of gray) denote that a coefficient has a p-value $\leq .05$. The full regression table is presented in Table A1 in the appendix.

account for the impact of important features of *Policy_j* and the relationship between $State_i$ and $State_j$. One well-recognized factor in policy diffusion is whether two states are neighbors (Berry and Berry 1990; Gray 1973; Mooney and Lee 1995; Walker 1969). I also control for the similarity between $State_i$ and $State_j$ in terms of government ideology. *Government ID Difference* captures the absolute value of the difference between the ideology scores for the state governments of $State_i$ and $State_j$ (Berry et al. 1998, 2010).²¹ Two characteristics of a preexisting law that may affect its influence are its age and whether

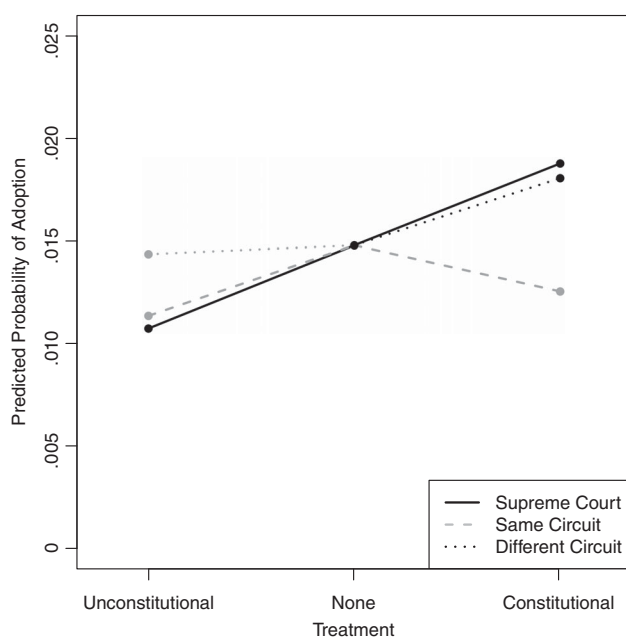
it was adopted through an initiative process rather than normal legislation. I control for these variables in both stages of the analysis.

A few additional controls are only relevant to one stage of the analysis or the other. Two factors primarily related to adoption are whether a state legislature is in session in a given year and prevailing public opinion on the issue of abortion. Some state legislatures only hold regular sessions on a biennial basis. The variable *In Session_{it}* equals 1 for years in which $State_i$ has a regular session and 0 otherwise.²² In order to control for public

²¹The government ideology scores are Berry and colleagues' NOMINATE measure of state government ideology that are available at <http://rcfording.wordpress.com/state-ideology-data/> (accessed March 10, 2013).

²²Some state legislatures can schedule special sessions, so it can be possible to adopt a policy even in a year with no regular legislative session. This variable was coded using relevant volumes of *The Book of the States* (Council of State Governments 1960–2010).

FIGURE 2 Effect of Federal Court Treatment on Adoption



Note: This graph provides the predicted probability of adoption based on different types of treatment the previous statute has received from the Supreme Court (solid line), the same circuit (dashed line), and a different circuit (dotted line). All other variables are held at their median or mode as applicable. A gray line indicates that the effect size is not significantly different from no treatment.

opinion on the issue of abortion in both $State_i$ and $State_j$, I utilize the measure compiled by Pacheco (2014) to reflect the proportion of a state's population that favors legalized abortion. Since this measure is quite stable over time, I extrapolate values for missing state-years by using the chronologically nearest available value for a given state.

The borrowed text model also contains a few additional controls. When existing laws contain overlapping text, a new policy may borrow phrasing that appears in more than one source. I address this issue by controlling for the probability of such joint overlap. The variable, *Other Borrowed Text*, is the sum of all text a new law has borrowed from preexisting statutes other than $Policy_j$.²³ When it equals 0, there is no overlap in borrowing, and when it is greater than 100, there must be some overlap

²³Although a greater number of previous adopters creates the potential for this variable to take on higher values, the correlation between *Number of Previous Adopters* and *Other Borrowed Text* is relatively low ($\rho = 0.29$). Moreover, using a measure normalized by the number of previous adopters does not materially alter the results.

in borrowed text.²⁴ Overall, higher values of this variable indicate the increasing probability of joint overlap and should be positively correlated with borrowing text from $Policy_j$.²⁵ The measurement of the percentage of borrowed text may also be dependent on the length of both $Policy_i$ and $Policy_j$. Consequently, I include controls for the natural log of the word count of both documents in the second stage of the analysis.

Table 2 shows a summary of the outcome variables and the federal court treatment variables. There are a total of 117,551 dyads in the first-stage model. $State_i$ chose to adopt the relevant policy type in 1.6% of those cases. In those 1,906 cases, the average amount of the text in the adopted policy that is borrowed from $Policy_j$ is nearly 6%. Table 2 shows the number of cases with each type of court treatment from each type of court for the full data set used in the first stage of the model. The most common situation is for there to be no relevant court case, which occurs 82% of the time. It is also important to bear in mind that the thousands of instances where there is a relevant court opinion are all derived from a relatively small corpus of a few dozen cases.

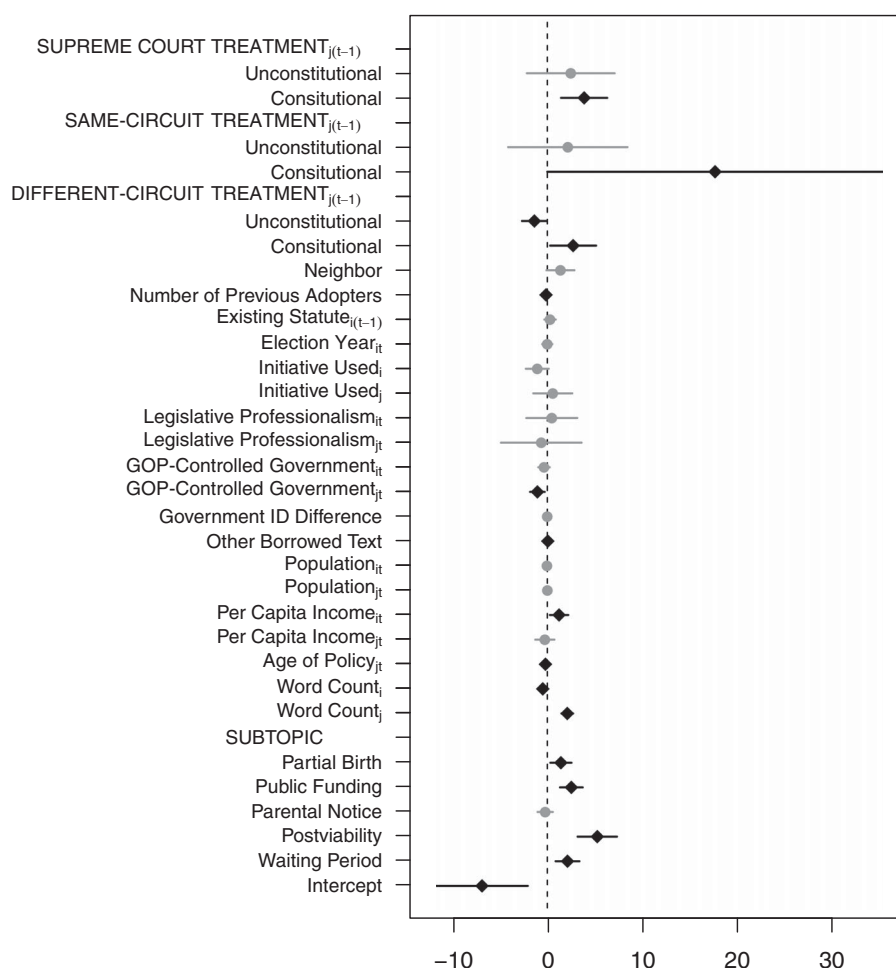
Results

My analysis begins with an examination of the decision to adopt a policy already enacted in another state. The results of the adoption model are presented in Figure 1. Rulings of unconstitutionality from all three types of courts have a negative impact on the probability of adoption, but the effect is statistically significant²⁶ only when the ruling was handed down by the Supreme Court. Furthermore, rulings of constitutionality from both the Supreme Court and a different circuit significantly increase the probability of adoption. These findings are consistent with the Adoption Hypothesis, but the nonsignificant effects for three of the six types of court rulings (including an unexpectedly negative coefficient for same-circuit

²⁴The bulk of the data fall between these two extremes. Just over 6% of the time, *Other Borrowed Text* equals 0, and 30% of the time, it is greater than 100. The values range as high as 568, but 95% of the data fall below 305.

²⁵This control variable only begins to address the complicated reality of statutory language that might have been derived from multiple sources. In the absence of a more feasible approach, I rely on this rough method of approximating when joint overlap occurs and leave the development of more nuanced approaches to future work.

²⁶All discussion of statistical significance is at the .05 level.

FIGURE 3 Borrowed Text Model

Note: This figure displays linear regression estimates of the effect of various types of federal court treatment and a range of control variables on the percentage of the text of a policy adopted by *State_i* that is borrowed from the existing statute in *State_j*. The baseline subtopic is *Parental Consent*. Dots and diamonds indicate point estimates. Bars indicate 95% confidence intervals. Diamonds (instead of dots) and bars in black (instead of gray) denote that a coefficient has a $p\text{-value} \leq .05$. The full regression table is presented in Table A2 in the appendix.

constitutional rulings) qualify the overall support for the hypothesis.

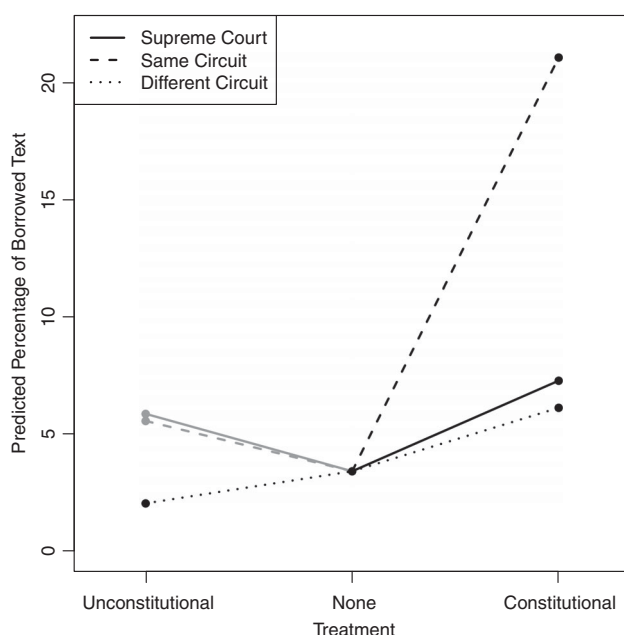
Figure 2 provides predicted probabilities to illustrate the substantive size of the court treatment effects.²⁷ Comparing the effect of constitutional rulings from the Supreme Court and from a different circuit reveals that the Supreme Court effect is larger, as anticipated by the Precedential Value Hypothesis, but the difference is negligible and not statistically significant.²⁸ Nevertheless, both

kinds of rulings have an important influence on the decision to adopt. The baseline probability of adoption when there are no relevant federal rulings (and all other variables are held at their median or mode) is .015. This increases to .019 with a constitutional ruling by the Supreme Court and .018 with a constitutional ruling by a different circuit. The probability of adoption decreases to .011 with a ruling of unconstitutionality by the Supreme Court. Each of these predicted probabilities is significantly different from the predicted probability of adoption when there is no relevant court treatment. Moreover, in light of the low baseline rate of adoption, these changes are substantial; for Supreme Court rulings, they represent a 27% relative increase and 28% relative decrease in the probability of adoption.

²⁷I generate all predicted outcomes using stochastic simulations (Brambor, Clark, and Golder 2006; King, Tomz, and Wittenberg 2000).

²⁸The details regarding all differences in predicted outcomes discussed in this section are available in Table A5 in the appendix.

FIGURE 4 Effect of Federal Court Treatment on Borrowed Text



Note: This graph provides the predicted percentage of borrowed text based on different types of treatment the previous statute has received from the Supreme Court (solid line), the same circuit (dashed line), and a different circuit (dotted line). All other variables are held at their median or mode as applicable. A gray line indicates that the effect size is not significantly different from no treatment.

Results from the control variables shed light on other factors that influence states' decisions about whether to adopt legislation. Not surprisingly, a state legislature being in session significantly increases the probability of adoption. As the overall number of previous adopters increases, adoption becomes less likely. States with a Republican-controlled government, a lower level of public support for legalized abortion, and lower per capita income are more likely to adopt a policy regulating abortion. Adoption is also more likely when the previous adopter, $State_j$, has a higher per capita income, but adoption is less likely when $State_j$ has a higher level of legislative professionalism.

When $State_i$ chooses to adopt legislation in the same policy area as $State_j$, there is variation in the level of similarity between those two policies. Consequently, I go beyond the adoption decision to model the extent to which the text in $State_i$'s policy is borrowed from the text in $State_j$'s preexisting policy. The results of this model are set forth in Figure 3. Rulings of constitutionality from all three types of courts significantly increase the percentage of a new law that is borrowed from $Policy_j$. The converse is only true for unconstitutional rulings

from a different circuit, which lead to a decreased amount of borrowed text.²⁹ These results provide substantial, but not unqualified, support for the Borrowing Hypothesis. In particular, there is good reason to conclude that court rulings declaring an existing policy constitutional do have the expected impact on policy formation.³⁰

Figure 4 shows the predicted percentage of borrowed text for different types of court treatment. When there are no court rulings and all control variables are held at their median or mode (as applicable), the model predicts that about 3.4% of $Policy_i$ is borrowed from $Policy_j$. A constitutional ruling from each type of court increases the predicted usage of borrowed text by a statistically significant and substantial amount, but the relative size of the effects does not conform to the expectations in the Precedential Value Hypothesis. Instead of Supreme Court rulings having the biggest effect, the effect of same-circuit rulings is largest by a wide margin. Such rulings increase the predicted amount of borrowed text all the way to 21.1%, whereas Supreme Court and different-circuit rulings increase overall borrowing to 7.3% and 6.2%, respectively. Although the predictions for same-circuit rulings are estimated somewhat imprecisely due to scarcity of data, the difference in predicted outcomes for same-circuit constitutional rulings and those from the Supreme Court is statistically significant. This suggests that state legislators pay particular attention to the expressed opinions of their own circuit when drafting policies.

Number of Previous Adopters is negative and statistically significant, which is consistent with the expectation that a wider range of options decreases the chance of borrowing from each individual law. Adopters are more likely to borrow from previous adopters whose state government is not controlled by the Republican Party. This likely reflects the reality that language forged in the fires of partisan compromise and negotiation ultimately has wider appeal. The wealth of $State_i$, the age of $Policy_j$, and the length of both policies also have an impact on the extent of borrowing. States with a higher per capita income have a greater tendency to borrow statutory text. Legislators are less likely to borrow text from older policies. When $State_i$'s policy is longer, a smaller percentage of it is composed of borrowed text, but when $Policy_j$ is

²⁹The estimates for same-circuit and Supreme Court unconstitutional rulings not only fail to reach statistical significance, but are also both positive, contrary to expectations.

³⁰Even though constitutional rulings from the same circuit have a statistically significant effect, the relative imprecision of this estimate is notable. Most likely this is due to the small amount of available data. $State_i$ only has a circuit court ruling from its own circuit to consider in a handful of cases.

longer, a larger percentage of *Policy_i* is borrowed from *Policy_j*. Finally, *Other Borrowed Text* is positive and significant, which indicates that the more text *State_i* has borrowed from other previous adopters, the more text it is likely to borrow from *State_j*. This pattern is likely driven by overlapping text among *Policy_j* and other previously adopted statutes (precisely the issue this variable is designed to address).

Discussion and Conclusions

Although the empirical results presented here do not fully support all proffered hypotheses, this study provides evidence that federal courts can influence the diffusion of state policies when those policies have federal constitutional implications. More importantly, it sheds light on the nuances of that influence. Looking at the decision to adopt separately from how laws are drafted reveals variation in the way federal courts influence these two aspects of state policymaking. Both the type and source of court rulings have different effects on these two decisions. First, cases ruling a previous statute constitutional and unconstitutional do not necessarily have a symmetrical impact. Second, the circuit courts and the Supreme Court appear to have differing influence on the two decisions.

In both models, there is more compelling evidence that constitutional rulings have an impact than that unconstitutional rulings influence policy adoption and formation. For the adoption decision, court rulings that *Policy_j* is unconstitutional have a statistically significant effect only when issued by the Supreme Court, whereas only unconstitutional rulings from a different circuit show evidence of influencing the extent of borrowed text in a newly adopted policy. Moreover, even this latter significant effect is smaller than its constitutional counterpart. That is, a different circuit ruling that a law is constitutional increases the predicted amount of borrowed text by 2.71%, whereas an unconstitutional ruling from the same source decreases the predicted borrowed text by only 1.37%. A constitutional ruling has nearly twice the impact of an unconstitutional ruling. Overall, these findings suggest that court rulings affirming a law's constitutionality carry greater informational value for subsequent state lawmakers looking to take advantage of their peers' experience.

Not surprisingly, there is broader evidence that the Supreme Court influences the decision to adopt a policy more than circuit courts. Supreme Court rulings are the most salient and informative court opinions. They have the broadest and most authoritative relevance as a matter of legal doctrine, and it is also possible that state legislators

are more likely to be aware of Supreme Court opinions. Consequently, it makes sense that both constitutional and unconstitutional rulings from the Supreme Court have a substantial impact on the probability of adoption, resulting in a relative change of around 27% in both cases. The comparative effect sizes of constitutional rulings in the borrowed text model, however, are counterintuitive. As expected, constitutional rulings from a different circuit have the smallest effect on the amount of borrowed text. Yet the impact of a constitutional ruling from the same circuit is significantly larger than that from a Supreme Court ruling. These results suggest that there may not be a discrepancy between the knowledge of relevant circuit law and Supreme Court opinions. Perhaps the greater likelihood a new law will face scrutiny from the relevant circuit court (compared to the low probability of Supreme Court review) may explain policy makers' greater proclivity for incorporating text from policies that have already been declared constitutional by their own circuit.

The findings from this study reveal a pattern of policy learning rather than mere imitation. State legislators do not simply rely on the fact of adoption in other jurisdictions, but critically consider a policy's success and factor that into formulating policy. Measuring borrowed text is not just important to study decisions about policy content separately from policy adoption. This measure is central to the findings here because it gets directly at the underlying theoretical mechanism of policy learning. The use of a different amount of borrowed text conditional on federal court treatment indicates that state legislators pay attention to information provided by federal courts and act based on that information. The borrowed text itself constitutes an overt manifestation of the learning process. While increased adoption of statutes that have been declared constitutional (and vice versa) certainly suggests that legislators pay attention to the fate of laws adopted by other states, such evidence is largely circumstantial. The existence of virtually identical phrasing in two laws provides concrete evidence that a state was likely both aware of, and influenced by, a particular preexisting policy. Identical phrasing appearing in separate documents might also occur when both sources obtain the text from some third source (e.g., an interest group or a different preexisting policy), but the link between court treatments and the amount of borrowed text cannot be explained by two states independently obtaining the statutory language from an outside source. Instead, the results support the conclusion that state policy makers pay attention to the results of important federal litigation and take that information into account when formulating policy.

The insights provided here about the role of federal courts in state policy diffusion are made possible by

utilizing and extending two important trends in the field of policy diffusion research. The first is Volden's application of dyadic analysis to the study of policy diffusion. The ability to model features of a previously adopted policy opens up a host of interesting theoretical questions. The influence of federal court treatment on how a policy affects other states' legislative choices is only one of many such questions. The second trend this article builds on is the burgeoning attention to policy content. Quantifying borrowed text provides a way the rich data available

in political texts can be leveraged to address important questions, such as the role of learning in policy diffusion. Traditionally, the difficulty and high cost of quantitatively analyzing the content of legislation has created a substantial barrier. The increasing availability of computational methods of text analysis is changing the landscape. The method employed here of calculating the extent of borrowed text combined with dyadic analysis is a viable and vibrant new option for continued research exploring the mechanisms driving policy diffusion.

Appendix

FIGURE A1 WCopyfind Example: Side-by-Side Comparison of Parental Consent Statutes

Minors Parental consent Judicial proceedings Except in the case of a minor who has been found by a court of competent jurisdiction to be emancipated, <u>if a pregnant woman is less than eighteen years of age and has not married, an abortion shall not be performed upon her unless both the consent of the pregnant woman and that of at least one of her parents is obtained, except as provided in this section. In deciding whether to grant consent, a pregnant woman's parents shall consider only their child's best interests. If both parents have died or are otherwise unavailable to the physician within a reasonable time and in a reasonable manner, consent of the pregnant woman's legal guardian or one of her guardians shall be sufficient. If a pregnant woman less than eighteen years of age has not married and if neither of her parents or guardians agree to consent to the performance of an abortion, or if she elects not to seek the consent of either of her parents or guardians, a judge of the family court shall, upon petition, or motion, and after an appropriate hearing, authorize a physician to perform the abortion, if the judge determines that the pregnant woman is mature and capable of giving informed consent to the proposed abortion or if the judge determines that she is not mature, but that the performance of an abortion upon her would be in her best interests. A pregnant woman less than eighteen years of age may participate in proceedings in the family court on her own behalf, and she shall be represented in her proceeding by a guardian ad litem. Proceedings in the family court under this section shall be confidential and shall be given such precedence over other pending matters that the court may reach a decision promptly and without delay so as to serve the best interests of the pregnant woman. A judge of the family court who conducts proceedings under this section shall make in writing specific factual findings and legal conclusions supporting his or her decision and shall order a record of the evidence to be maintained including his or her own findings and conclusions.</u> file:///F:/ABOR.pc.RI.1982.text.txt.ABOR.pc.MA.1974.text.txt.html#1	<u>If a pregnant woman is less than eighteen years of age and has not married, a physician shall not perform an abortion upon her unless he first obtains both the consent of the pregnant woman and that of her parents, except as hereinafter provided. In deciding whether to grant such consent, a pregnant woman's parents shall consider only their child's best interests. If one of the pregnant woman's parents has died or is unavailable to the physician within a reasonable time and in a reasonable manner, consent of the remaining parent shall be sufficient. If both parents have died or are otherwise unavailable to the physician within a reasonable time and in a reasonable manner, consent of the pregnant woman's guardian or guardians shall be sufficient. If the pregnant woman's parents are divorced, consent of the parent having custody shall be sufficient. If a pregnant woman less than eighteen years of age has not married and if one or both of her parents or guardians refuse to consent to the performance of an abortion, or if she elects not to seek the consent of one or both of her parents or guardians, a judge of the superior court department of the trial court shall, upon petition, or motion, and after an appropriate hearing, authorize a physician to perform the abortion if said judge determines that the pregnant woman is mature and capable of giving informed consent to the proposed abortion or, if said judge determines that she is not mature, that the performance of an abortion upon her would be in her best interests. A pregnant woman less than eighteen years of age may participate in proceedings in the superior court department of the trial court on her own behalf, and the court may appoint a guardian ad litem for her. The court shall, however, advise her that she has a right to court appointed counsel, and shall, upon her request, provide her with such counsel. Proceedings in the superior court department of the trial court under this section shall be confidential and shall be given such precedence over other pending matters that the court may reach a decision promptly and without delay so as to serve the best interests of the pregnant woman. A judge of the superior court department of the trial court who conducts proceedings under this section shall make in writing specific factual findings and legal conclusions supporting his decision and shall order a record of the evidence to be maintained including his own findings and conclusions.</u>
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Note: *Policy_i* is on the left and *Policy_j* is on the right. In this example, 77% of *Policy_i* is borrowed from *Policy_j*. The gray underlined text shows the phrases in both documents, with minor differences noted in italics.

TABLE A1 Adoption Model

	Coefficient	Standard Error	p-Value
Supreme Court Treatment $_{j(t-1)}$			
Unconstitutional	-0.123*	0.050	0.013
Constitutional	0.096*	0.026	0.000
Same-Circuit Treatment $_{j(t-1)}$			
Unconstitutional	-0.102	0.126	0.418
Constitutional	-0.065	0.134	0.631
Different-Circuit Treatment $_{j(t-1)}$			
Unconstitutional	-0.012	0.031	0.700
Constitutional	0.080*	0.028	0.004
Neighbor	0.033	0.031	0.296
Number of Previous Adopters	-0.020*	0.009	0.021
Existing Statute $_{i(t-1)}$	-0.082	0.093	0.379
In Session $_{it}$	0.988*	0.320	0.002
Election Year $_{it}$	-0.018	0.081	0.826
Initiative Available $_{it}$	0.100	0.084	0.235
Initiative Used $_j$	0.029	0.033	0.387
Legislative Professionalism $_{it}$	-0.176	0.528	0.739
Legislative Professionalism $_{jt}$	-0.358*	0.105	0.001
GOP-Controlled Government $_{it}$	0.278*	0.090	0.002
GOP-Controlled Government $_{jt}$	0.001	0.026	0.971
Government ID Difference	-0.001	0.001	0.170
Public Opinion on Abortion $_{it}$	-1.215*	0.556	0.029
Public Opinion on Abortion $_{jt}$	-0.338	0.226	0.134
Population $_{it}$	0.015	0.009	0.091
Population $_{jt}$	-0.001	0.002	0.725
Per Capita Income $_{it}$	-0.251*	0.090	0.005
Per Capita Income $_{jt}$	0.225*	0.066	0.001
Age of Policy $_{jt}$	-0.002	0.001	0.282
Subtopic			
Partial Birth	0.200	0.120	0.096
Public Funding	-0.227	0.117	0.053
Parental Notice	-0.170	0.121	0.160
Postviability	-0.472*	0.117	0.000
Waiting Period	-0.145	0.126	0.247
Intercept	-2.024*	0.378	0.000
N		117,551	

Notes: The table displays probit regression estimates of the effect of various types of federal court treatment and a range of control variables on $State_i$'s decision of whether to adopt a policy similar to $State_j$'s. The baseline subtopic is *Parental Consent*. The reported standard errors are robust standard errors that are clustered on $State_i$ and year t . * Denotes a p-value $\leq .05$.

TABLE A2 Borrowed Text Model

	Coefficient	Standard Error	p-Value
Supreme Court Treatment $_{j(t-1)}$			
Unconstitutional	2.462	2.334	0.293
Constitutional	3.869*	1.228	0.002
Same-Circuit Treatment $_{j(t-1)}$			
Unconstitutional	2.150	3.172	0.499
Constitutional	17.642*	8.927	0.050
Different-Circuit Treatment $_{j(t-1)}$			
Unconstitutional	-1.364*	0.659	0.040
Constitutional	2.709*	1.223	0.028
Neighbor	1.376	0.743	0.066
Number of Previous Adopters	-0.146*	0.051	0.005
Existing Statute $_{i(t-1)}$	0.281	0.301	0.352
Election Year $_i$	-0.009	0.270	0.974
Initiative Used $_i$	-1.062	0.609	0.083
Initiative Used $_j$	0.570	1.035	0.582
Legislative Professionalism $_{it}$	0.466	1.353	0.731
Legislative Professionalism $_{jt}$	-0.640	2.144	0.766
GOP-Controlled Government $_{it}$	-0.352	0.304	0.249
GOP-Controlled Government $_{jt}$	-1.048*	0.388	0.008
Government ID Difference	-0.013	0.011	0.236
Other Borrowed Text	0.046*	0.003	0.000
Population $_{it}$	-0.046	0.033	0.168
Population $_{jt}$	0.004	0.052	0.936
Per Capita Income $_{it}$	1.230*	0.488	0.013
Per Capita Income $_{jt}$	-0.265	0.506	0.602
Age of Policy $_{jt}$	-0.201*	0.048	0.000
Word Count $_i$	-0.482*	0.164	0.004
Word Count $_j$	2.094*	0.311	0.000
Subtopic			
Partial Birth	1.425*	0.562	0.012
Public Funding	2.524*	0.603	0.000
Parental Notice	-0.227	0.405	0.576
Postviability	5.251*	1.047	0.000
Waiting Period	2.118*	0.632	0.001
Intercept	-6.871*	2.434	0.005
N		1,906	

Notes: The table displays linear regression estimates of the effect of various types of federal court treatment and a range of control variables on the percentage of the text of a policy adopted by $State_i$ that is borrowed from $Policy_j$. The baseline subtopic is *Parental Consent*. The reported standard errors are robust standard errors that are clustered on $State_i$ and year t . * Denotes a p-value $\leq .05$.

TABLE A3 Heckman Selection Model

	Adoption			Borrowed Text		
	Coef.	S.E.	p-Value	Coef.	S.E.	p-Value
Supreme Court Treatment $_{j(t-1)}$						
Unconstitutional	-0.122*	0.050	0.014	2.635	2.313	0.254
Constitutional	0.096*	0.026	0.000	3.759*	1.201	0.002
Same-Circuit Treatment $_{j(t-1)}$						
Unconstitutional	-0.102	0.126	0.419	2.222	3.161	0.482
Constitutional	-0.064	0.134	0.635	17.671*	8.832	0.045
Different-Circuit Treatment $_{j(t-1)}$						
Unconstitutional	-0.012	0.031	0.709	-1.338*	0.653	0.040
Constitutional	0.080*	0.028	0.004	2.608*	1.211	0.031
Neighbor	0.033	0.031	0.297	1.307	0.723	0.071
Number of Previous Adopters	-0.020*	0.009	0.021	-0.123*	0.053	0.019
Existing Statute $_{i(t-1)}$	-0.082	0.093	0.378	0.373	0.329	0.256
In Session $_{it}$	0.989*	0.319	0.002	—		
Election Year $_{it}$	-0.018	0.081	0.825	0.073	0.285	0.798
Initiative Available $_{it}$	0.101	0.084	0.232	—		
Initiative Used $_i$	—			-0.829	0.528	0.116
Initiative Used $_j$	0.030	0.033	0.364	0.579	1.029	0.574
Legislative Professionalism $_{it}$	-0.176	0.529	0.739	0.655	1.473	0.656
Legislative Professionalism $_{jt}$	-0.355*	0.105	0.001	0.001	2.154	1.000
GOP-Controlled Government $_{it}$	0.278*	0.090	0.002	-0.674	0.357	0.059
GOP-Controlled Government $_{jt}$	0.001	0.026	0.961	-1.034*	0.383	0.007
Government ID Difference	-0.001	0.001	0.171	-0.011	0.011	0.296
Public Opinion on Abortion $_{it}$	-1.210*	0.555	0.029	—		
Public Opinion on Abortion $_{jt}$	-0.360	0.229	0.115	—		
Other Borrowed Text	—			0.046*	0.003	0.000
Population $_{it}$	0.015	0.009	0.091	-0.061	0.034	0.073
Population $_{jt}$	-0.001	0.002	0.717	0.004	0.052	0.937
Per Capita Income $_{it}$	-0.252*	0.090	0.005	1.598*	0.502	0.001
Per Capita Income $_{jt}$	0.227*	0.066	0.001	-0.576	0.500	0.249
Age of Policy $_{jt}$	-0.002	0.001	0.273	-0.199*	0.047	0.000
Word Count $_i$	—			-0.482*	0.164	0.003
Word Count $_j$	—			2.085*	0.307	0.000
Subtopic						
Partial Birth	0.200	0.120	0.096	1.131	0.585	0.053
Public Funding	-0.227	0.117	0.053	2.783*	0.632	0.000
Parental Notice	-0.169	0.121	0.162	0.012	0.438	0.978
Postviability	-0.472*	0.117	0.000	5.797*	1.119	0.000
Waiting Period	-0.145	0.126	0.247	2.261*	0.658	0.001
Intercept	-2.021*	0.378	0.000	-4.233	2.559	0.098
N	117,551			1,906		
ρ	-0.115*	0.062	0.012			
$\ln(\sigma)$	2.169*	0.076	0.000			

Notes: The table displays estimates of the effect of various types of federal court treatment and a range of control variables on $State_i$'s decision of whether to adopt a policy and, if so, what percentage of the text of the new policy is borrowed from $Policy_j$. The baseline subtopic is *Parental Consent*. The reported standard errors are robust standard errors that are clustered on $State_i$ and year t . * Denotes a p-value $\leq .05$.

TABLE A4 Monadic Adoption Model

	Coefficient	Standard Error	p-Value
Supreme Court Treatment $_{j(t-1)}$			
Unconstitutional	-0.388	0.203	0.055
Constitutional	0.163	0.124	0.188
Same-Circuit Treatment $_{j(t-1)}$			
Unconstitutional	-0.064	0.149	0.668
Constitutional	-0.083	0.155	0.593
Different-Circuit Treatment $_{j(t-1)}$			
Unconstitutional	-0.038	0.109	0.731
Constitutional	-0.031	0.111	0.783
Prop. Neighbor Previous Adopters	0.146	0.169	0.388
Number of Previous Adopters	0.000	0.011	0.992
Existing Statute $_{i(t-1)}$	-0.095	0.082	0.246
In Session $_{it}$	0.925*	0.312	0.003
Election Year $_{it}$	-0.150*	0.072	0.036
Initiative Available $_{it}$	0.150*	0.074	0.043
Legislative Professionalism $_{it}$	-0.348	0.441	0.430
GOP-Controlled Government $_{it}$	0.263*	0.081	0.001
Public Opinion on Abortion $_{it}$	-1.978*	0.476	0.000
Population $_{it}$	0.012	0.008	0.131
Per Capita Income $_{it}$	0.137	0.098	0.163
Mean Age of Existing Policies	-0.043*	0.015	0.005
Subtopic			
Partial Birth	0.025	0.123	0.841
Public Funding	-0.035	0.117	0.765
Parental Notice	-0.129	0.108	0.231
Postviability	-0.261*	0.133	0.050
Waiting Period	-0.201	0.147	0.173
Intercept	-2.206*	0.370	0.000
N		10,274	

Notes: The table displays probit regression estimates of the effect of various types of federal court treatment and a range of control variables on $State_i$'s decision of whether to adopt a policy in year t . The court treatment measures are based on the court rulings regarding all previously adopted policies of the relevant subtopic. The actions of previous adopters in neighboring states are controlled for using the proportion of all neighbor states that are previous adopters. The baseline subtopic is *Parental Consent*. The reported standard errors are robust standard errors that are clustered on $State_i$ and year t . * Denotes a p-value $\leq .05$.

TABLE A5 Summary of Simulated Differences

Quantity of Interest	Percentile		
	2.5%	50%	97.5%
Pr(Adopt S.Ct. Uncon.) – Pr(Adopt No Treatment)	–0.008	– 0.004	–0.001
Pr(Adopt S.Ct. Con.) – Pr(Adopt No Treatment)	0.002	0.004	0.007
Pr(Adopt S.Cir. Uncon.) – Pr(Adopt No Treatment)	–0.011	–0.003	0.006
Pr(Adopt S.Cir. Con.) – Pr(Adopt No Treatment)	–0.010	–0.002	0.009
Pr(Adopt D.Cir. Uncon.) – Pr(Adopt No Treatment)	–0.003	–0.000	0.002
Pr(Adopt D.Cir. Con.) – Pr(Adopt No Treatment)	0.001	0.003	0.007
Pr(Adopt S.Ct. Uncon.) – Pr(Adopt S.Cir. Uncon.)	–0.006	–0.001	0.007
Pr(Adopt S.Cir. Uncon.) – Pr(Adopt D.Cir. Uncon.)	–0.017	– 0.011	–0.000
Pr(Adopt S.Ct. Con.) – Pr(Adopt S.Cir. Con.)	–0.016	–0.009	0.002
Pr(Adopt S.Cir. Con.) – Pr(Adopt D.Cir. Con.)	–0.021	–0.014	0.001
(% Borrowed S.Ct. Uncon.) – (% Borrowed No Treatment)	–2.131	2.451	7.079
(% Borrowed S.Ct. Con.) – (% Borrowed No Treatment)	1.481	3.870	6.264
(% Borrowed S.Cir. Uncon.) – (% Borrowed No Treatment)	–4.081	2.147	8.360
(% Borrowed S.Cir. Con.) – (% Borrowed No Treatment)	0.096	17.647	35.136
(% Borrowed D.Cir. Uncon.) – (% Borrowed No Treatment)	–2.657	– 1.368	–0.069
(% Borrowed D.Cir. Con.) – (% Borrowed No Treatment)	0.313	2.712	5.127
(% Borrowed S.Ct. Uncon.) – (% Borrowed S.Cir. Uncon.)	–2.891	1.774	6.486
(% Borrowed S.Cir. Uncon.) – (% Borrowed D.Cir. Uncon.)	–2.929	3.318	9.541
(% Borrowed S.Ct. Con.) – (% Borrowed S.Cir. Con.)	–17.688	– 15.260	–12.821
(% Borrowed S.Cir. Con.) – (% Borrowed D.Cir. Con.)	–0.443	17.124	34.648

Notes: The table displays a summary of differences in simulated predicted outcomes, holding all variables not listed at their median or mode (as applicable). Median values of a difference are in bold when the 95% confidence interval for the quantity of interest does not include zero.

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